



Republic of the Philippines
Province of Laguna
City of Biñan

OFFICE OF THE CITY COUNCIL

3rd Floor Gusaling Batasan., Brgy. Zapote, City of Biñan, Laguna
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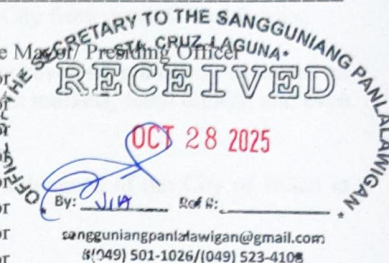


**EXCERPT FROM THE MINUTES OF REGULAR SESSION OF THE CITY COUNCIL
OF BIÑAN HELD AT THE AMBROSIO RIANZARES BAUTISTA HALL AT CITY
HALL ANNEX BUILDING, BARANGAY ZAPOTE, CITY OF BIÑAN, PROVINCE OF
LAGUNA DATED 6 OCTOBER 2025.**

PRESENT:

Hon. JONALINA R. REYES
Hon. LIBUNERO O. ALATIT
Hon. LIZA L. CARDEÑO
Hon. ARTHUR R. DIMAGUILA
Hon. ROMMEL R. DICDICAN
Hon. ELVIS D. BEDIA
Hon. JOSELLE TITUS V. BAUTISTA
Hon. ELMARIO B. DIMARANAN
Hon. ALEXIS H. DESUASIDO
Hon. CHRISTOPHER A. ALBA
Hon. VICTOR L. CARIÑO
Hon. INGRID KATHRINA L. ALMEDA
Hon. ALONZO KYNE S. GARCIA
Hon. GEMINIANO B. CATALON
GERONIMO D. ROMANTIGUE, MDMG

- City Vice Mayor/Presiding Officer
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- Councilor
- SK-Federation President
- ABC-Federation President
- City Council Secretary



GUESTS:

Mr. Jaime M. Salandanan (Former Councilor)
Legislative Staff of the City Government of Biñan

ABSENT:

Hon. DONNA ANGELA P. YATCO - Councilor

CITY ORDINANCE NO. 20-(2025)

**AN ORDINANCE PROTECTING CONSUMERS IN THE CITY OF BIÑAN AGAINST
THE SALE AND DISTRIBUTION OF EXPIRED, UNSAFE, OR SPOILED FOOD AND
NON-FOOD PRODUCT, PROVIDING PENALTIES FOR VIOLATIONS THEREOF."**

Authored by: HON. ALEXIS H. DESUASIDO

WHEREAS, Section 15 of Article II of the 1987 Philippine Constitution provides that "The state shall protect and promote the right to health of the people and instill health consciousness among them;"

WHEREAS, Section 9 of Republic Act No. 7394, otherwise known as the Consumer Act of the Philippines declares it unlawful to offer for sale any product that is expired, mislabeled, defective, or harmful to consumers;

WHEREAS, Republic Act No. 10611, or the Food Safety Act of 2013, mandates local government units (LGUs) to ensure the safety of food within their respective jurisdictions by enforcing food safety regulations and standards;

WHEREAS, the Local Government Code of 1991 (RA 7160) grants cities the power to enact ordinances to promote the general welfare, including the protection of the health, safety, and well-being of its inhabitants;

WHEREAS, the Food and Drug Administration Act of 2009 (RA 9711) empowers the FDA to regulate food, health, and cosmetic products, and support LGU coordination in surveillance and enforcement actions;

WHEREAS, there is a compelling need to establish a local ordinance to regulate the sale and distribution of food, health, and cosmetic products that are expired, spoiled, unregistered, or improperly handled, in order to protect the residents of Biñan City from possible health risks;

WHEREAS, recent inspections and citizen complaints have revealed numerous instances of expired food and unregistered health products being sold in wet markets, retail outlets, and even ambulant vendors within Biñan City;

NOW THEREFORE, be it ordained by the Sangguniang Panlungsod of the City of Biñan in session duly assembled:

SECTION 1. Title

This Ordinance shall be known as the "Consumer Protection Against Expired Food, Health, and Cosmetic Products Ordinance of Biñan City."

SECTION 2. Declaration of Policy

The City Government of Biñan upholds the right of every consumer to safe and quality goods. It is the policy of the City to ensure that all food, health, and cosmetic products being sold or distributed in local markets and commercial establishments are fit for human use and consumption. The City shall prevent the sale, distribution, and display of expired, spoiled, counterfeit, or misbranded items and penalize violators accordingly.

SECTION 3. Scope and Coverage

This Ordinance shall apply to all persons and establishments engaged in the sale, distribution, repackaging, cooking, or vending of food, beverages, health supplements, personal care products, and cosmetics within the territorial jurisdiction of the City of Biñan, including but not limited to:

- Public Markets
- Grocery Stores
- Convenience Stores
- Mini-marts and Supermarkets
- Sari-sari Stores
- Street vendors and Ambulant sellers
- Drug Store Business
- Fast Food Chain
- Cosmetic Store

SECTION 4. Definition of Terms

- a. Expired Food & Non-food Product – Any food & non-food item that has reached or exceeded its indicated expiration or "best before" date.
 - b. Spoiled Food & Non-food Product – Food that has decomposed, is unsafe, or has changed in smell, color, or texture making it unsuitable for consumption.
 - c. Consumer – A natural person who buys food products for personal use.
 - d. Retailer – Any individual or entity that sells food products directly to consumers.
 - e. Food Product – Any item intended for human consumption including beverages, canned goods, dried goods, frozen products, and perishable items.
- Non-food Product - any tangible item that is not intended for consumption and cannot be eaten.

SECTION 5. Prohibited Acts

It shall be unlawful for any person or establishment to:

- a. Sell or offer for sale expired, spoiled, or unsafe food, health, beverages, or cosmetics products;
- b. Repackage, mislabel, or manipulate expiration dates for resale;
- c. Sell cooked food that is spoiled, contaminated, or stored at unsafe temperatures;
- d. Display or store expired products for public sale;
- e. Distribute unregistered or counterfeit health or cosmetic products;
- f. Alter or tamper with expiration dates to mislead consumers;
- g. Fail to segregate expired products from sellable goods;
- h. Store expired products in areas accessible to the public;

SECTION 6. Duties of Vendors and Establishments

All food sellers shall:

- a. Regularly check and monitor inventory for expiration dates;
- b. Remove expired goods immediately and dispose of them properly;
- c. Clearly label products with expiration dates where applicable;
- d. Store perishable goods in proper and sanitary conditions.

SECTION 7. Confiscation and Disposal

Confiscation shall be undertaken by the City Health Office or authorized inspection teams upon discovery of expired or unsafe product. Items shall be:

- a. Documented, photographed, and recorded
- b. Acknowledged by the vendor via a receipt form
- c. Transported to a secure area of disposal
- d. Properly disposed of through incineration, deep burial, or other DOH/FDA-compliant methods.

Barangay officials or market supervisors shall witness the disposal process.

SECTION 8. Inspection and Enforcement

The City Health Office, Market Administration Office, and City Business Permits and Licensing Office, in coordination with barangay officials, shall:

- a. Conduct regular and surprise inspections of public and private establishments;
- b. Confiscate expired or unsafe food products;
- c. Issue citations, warnings, or closure orders to violators;
- d. Submit inspection reports to the Sangguniang Panlungsod quarterly.

SECTION 9. Penalties

Violators shall be penalized as follows:

First Offense: Warning, Confiscation, and Mandatory Food Safety Seminar;

Second Offense: ₱3,000 fine and 3-day suspension of business permit;

Third Offense: ₱5,000 fine and revocation of permit after due process.

SECTION 10. Implementing Rules and Regulations

Within thirty (30) days from effectivity, the City Health Office and BPLO shall draft the Implementing Rules and Regulations (IRR) in coordination with other concerned departments.

SECTION 11. Information and Education Campaign

The Public Information Office (PIO) and City Health Office shall lead the awareness campaign to educate both vendors and consumers about the dangers of expired food products and the provisions of this Ordinance.

SECTION 12. Appropriations

The necessary funds for the implementation of this Ordinance shall be sourced from the City Government's general fund and/or other appropriate sources.

SECTION 13. Separability Clause

If any provision of this Ordinance is declared invalid or unconstitutional, the remaining parts not affected shall remain in full force and effect.

SECTION 14. Repealing Clause

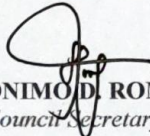
All ordinances, rules, and regulations inconsistent with this Ordinance are hereby repealed or modified accordingly.

SECTION 15. Effectivity

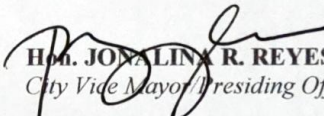
This Ordinance shall take effect fifteen (15) days after publication and posting in at least three (3) conspicuous places in the City of Biñan.

UNANIMOUSLY APPROVED.

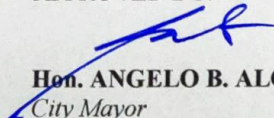
CERTIFIED CORRECT:


GERONIMO D. ROMANTIGUE, MDMG
City Council Secretary

ATTESTED BY:


Hon. JONALYN R. REYES
City Vice Mayor/Presiding Officer

APPROVED BY:


Hon. ANGELO B. ALONTE
City Mayor

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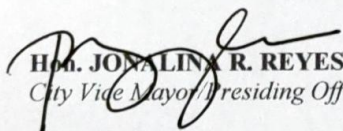
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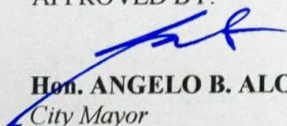
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